

GORSUCH, J., dissenting

Michigan, and Vermont all followed *Hutchinson*. *Ante*, at 703.⁶¹ The Court agrees that South Carolina did too,⁶² but it believes that a later South Carolina case might have deviated from the *Hutchinson* rule. That decision, however, contains at best only “an inconclusive discussion coming from a State whose highest court had previously stated unequivocally that a bar against double prosecutions would exist.”⁶³

In the face of so much contrary authority, the Court winds up leaning heavily on a single 1794 North Carolina Superior Court decision, *State v. Brown*. But the Court’s choice here is revealing. True, *Brown* said that a verdict in North Carolina would not be “pleadable in bar to an indictment preferred against [the defendant] in the Territory South of the Ohio.”⁶⁴ But the Court leaves out what happened next. *Brown* went on to *reject* concurrent jurisdiction because trying the defendant “according to the several laws of each State” could result in him being “cropped in one, branded and whipped in another, imprisoned in a third, and hanged in a fourth; and all for *one and the same offence*.”⁶⁵ The North Carolina court viewed that result as “against natural justice” and “therefore [could] not believe it to be law.”⁶⁶ So it is that the principal support the Court cites for its position is a state case that both (1) regarded transgressions of the laws of a State and a U. S. territory as the “same offence,” and (2) expressed aversion at the thought of both jurisdictions punishing the defendant for that singular offense.⁶⁷

⁶¹ Citing *Commonwealth v. Fuller*, 49 Mass. 313, 318 (1844); *Harlan v. People*, 1 Doug. 207, 212 (Mich. 1843); *State v. Randall*, 2 Aik. 89 (Vt. 1827).

⁶² *State v. Antonio*, 7 S. C. L. 776 (1816).

⁶³ *Bartkus*, 359 U. S., at 158–159 (Black, J., dissenting).

⁶⁴ 2 N. C. 100, 101.

⁶⁵ *Ibid.* (emphasis added).

⁶⁶ *Ibid.*

⁶⁷ Perhaps the only early state-law discussion that truly supports the Court’s position is dicta in an 1834 Virginia decision. *Hendrick v. Commonwealth*, 32 Va. 707. Yet even that support proves threadbare in the